

TENTATIVE RULING

Case: **Davis Medical Venture LLC v. Gary**
 Case No. CV2025-2253

Hearing Date: **September 15, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff's motion for leave to amend:

Plaintiff Davis Medical Venture LLC's motion for leave to file its first amended and supplemental complaint is **GRANTED**. (Code Civ. Proc., §§ 473, subd. (a)(1), 464; Cal. Rules of Court, rule 3.1324, 1.5.) "That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901." (*S.C. v. Doe I* (2025) 115 Cal.App.5th 365, 376.) Denial on the grounds of delay and/or lack of diligence is unwarranted if "the opposing party was not misled or prejudiced by the amendment." (*Id.*, at p. 383.) The Court finds that plaintiff's delay does not prejudice defendants Donna Gary and Dielji, Inc. because there is no trial date, plaintiff provided a reasonable explanation for the delay, and parties have ample time to further investigate these causes of action and factual allegations. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486.)

Plaintiff is **DIRECTED** to file its first amended supplemental complaint with the Court by **September 21, 2026**. (Chase decl., ¶ 10; Exhibit A.)

The notice of motion provides notice of this Court's tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **Hamilton v. Amazon.com, Inc.**
Case No. CV2026-0814

Hearing Date: **September 15, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiffs Tina Hamilton and Stacey Hite's motion for final approval of class and collective action settlement. (Cal. Rules of Court, rule 3.769(f), (g), (h).)